

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander Lai	Team: Team # 1	CCRB Case #: 201213975	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 10/24/2012 7:20 PM	Location of Incident: Beach 20th Street and Cornaga Avenue	18 Mo. SOL 4/24/2014	Precinct: 101		
Date/Time CV Reported Fri, 10/26/2012 4:20 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 10/26/2012 4:20 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Keith Gallagher	00371	938517	101 PCT
2. POM Travis Mussaw	13089	945262	101 PCT
3. POM Brian Chavanne	02831	934618	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Keith Gallagher	Discourtesy: Sgt. Keith Gallagher spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Travis Mussaw	Abuse: PO Travis Mussaw frisked § 87(2)(b)	B . Exonerated
C . POM Travis Mussaw	Abuse: PO Travis Mussaw searched § 87(2)(b)	C . Unsubstantiated
D . SGT Keith Gallagher	Abuse: Sgt. Keith Gallagher searched the car in which § 87(2)(b) was an occupant.	D . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(b) filed this complaint with the CCRB over the telephone on October 26, 2012. On October 24, 2012, at approximately 7:20 p.m., on the corner of Beach 20th Street and Cornaga Avenue in Queens, § 87(2)(b)'s vehicle was stopped by Sgt. Keith Gallagher, PO Brian Chavanne, and PO Travis Mussaw of the 101st Precinct. Their subsequent interaction resulted in the following allegations:

- **Allegation A – Discourtesy: Sgt. Keith Gallagher spoke discourteously to** § 87(2)(b)
- **Allegation C – Abuse of Authority: PO Travis Mussaw searched** § 87(2)(b)

§ 87(2)(g) it is recommended that **Allegations A and C** be **Unsubstantiated**.

- **Allegation B – Abuse of Authority: PO Travis Mussaw frisked** § 87(2)(b)

§ 87(2)(g) it is recommended that **Allegation B** be **Exonerated**.

- **Allegation D – Abuse of Authority: Sgt. Keith Gallagher searched the car in which** § 87(2)(b) **was an occupant.**

§ 87(2)(g) and it is recommended that **Allegation D** be **Substantiated**.

- § 87(2)(g), § 87(4-b)

§ 87(2)(b) declined to mediate his complaint.

Results of Investigation

Civilian Statement

Complainant/ Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male who § 87(2)(b), and has black hair and brown eyes.
- § 87(2)(b) § 87(2)(b)

CCRB Testimony

In addition to § 87(2)(b)'s initial complaint narrative, he provided a phone statement on January 3, 2013, and was interviewed at the CCRB on February 5, 2013 (encl. E1-6). § 87(2)(b)

On October 24, 2012, at approximately 7:20 p.m., § 87(2)(b) was alone and driving his grey-colored i35 Infinity four-door sedan (NY plate § 87(2)(b)) on Beach 20th Street from Mott Avenue in Queens. His vehicle does not have any tinted windows and it was not altered in any manner, with the exception of a cracked, but still functioning, rear passenger tail light. There were no items, bags, or packages on or around his vehicle's seats. Upon stopping at the red traffic light on Beach 20th Street and Cornaga Avenue, § 87(2)(b) observed the activated turret lights of an unmarked sky-blue four-door sedan (plate ending in § 87(2)(b)) behind him. § 87(2)(b) turned right onto Cornaga Avenue and immediately pulled over.

§ 87(2)(b) kept his hands on his lap when three uniformed officers, Sgt. Keith Gallagher, PO Travis Mussaw, and PO Brian Chavanne of the 101st Precinct, approached his vehicle. PO Mussaw, identified via investigation, was the driver and was described as a light-complexioned male who stood 6'0", weighed 185-200 pounds, and was bald. Sgt. Gallagher was described as a white male who stood 6'0", weighed approximately 200 pounds, and had salt and pepper hair. § 87(2)(b) acquired Sgt. Gallagher's name several days later when the officer issued him a summons for a cracked brake light. PO Chavanne, identified via investigation, was described as a white male with brown hair.

PO Mussaw approached the driver's door, Sgt. Gallagher approached the front passenger door, and PO Chavanne stood by the trunk. § 87(2)(b) rolled his driver's window one-quarter of the way down, and PO Mussaw asked for his license, registration, and insurance. While retrieving his wallet from his rear right pocket, § 87(2)(b) asked PO Mussaw why he was pulled over, but he did not recall if PO Mussaw responded. In his phone statement, § 87(2)(b) said that PO Mussaw replied that his vehicle's headlight was out. At that point, § 87(2)(b)'s attention was drawn to Sgt. Gallagher, who was attempting to open the front passenger door by pulling on its handle, but it was locked. Sgt. Gallagher said, "Roll the fucking window down." Later in the interview, § 87(2)(b) said that Sgt. Gallagher additionally told him to unlock the door. § 87(2)(b) then retrieved his iPhone from the exposed center console; he wanted to call his friend who was an NYPD employee, but he ultimately was unable to do so. § 87(2)(b) rolled his driver's window halfway down and Sgt. Gallagher repeated, "Roll the fucking window down." In his phone statement, § 87(2)(b) said that PO Mussaw instructed § 87(2)(b) to roll his driver's window down, and § 87(2)(b) rolled it down halfway, at which point Sgt. Gallagher said, "Roll the fucking window down." § 87(2)(b) was surprised by Sgt. Gallagher's actions for what appeared to be a routine traffic stop, "hesitated", and then handed his license and a PBA card to PO Mussaw. PO Mussaw responded, "You're going to ask me all these questions and then take out a PBA card?" At this point, Sgt. Gallagher repeatedly told PO Mussaw to "snatch § 87(2)(b) out the fucking window." § 87(2)(b) unlocked his vehicle's locks, voluntarily opened the driver's door, and exited the vehicle, with PO Mussaw simultaneously guiding him out by holding onto his upper arms.

PO Mussaw turned § 87(2)(b) around and told him to place his hands on the car roof. § 87(2)(b) who was holding his wallet and cellphone in both hands, complied, standing in-between the open driver door and his vehicle. PO Mussaw, standing behind § 87(2)(b) patted the exterior of § 87(2)(b)'s left chest and front torso with his left hand and placed his right hand inside § 87(2)(b)'s right jacket pocket. § 87(2)(b) asked what they were doing and said that he did not give permission for the officers to search him or his vehicle. PO Mussaw replied, "I'm not searching you," to which § 87(2)(b) said, "Then get your hand out of my pocket." PO Mussaw removed his hand from § 87(2)(b)'s pocket without removing anything or entering any other pocket. In his phone statement, § 87(2)(b) said that PO Mussaw first placed his hands

inside § 87(2)(b)'s sweater pockets and then patted the exterior of his other pockets. During this time, Sgt. Gallagher was inside his vehicle from the front passenger door, with one foot on the ground, the other foot's knee on the front passenger seat, and his upper torso parallel to the ground and perpendicular to the seats. Sgt. Gallagher appeared to be looking at areas around the driver's seat and the front passenger seat, but § 87(2)(b) was unable to see anywhere specific. PO Mussaw told § 87(2)(b) to step towards the rear of his vehicle and he complied, standing with him and PO Chavanne.

As § 87(2)(b) stood by his vehicle trunk, Sgt. Gallagher exited the car and asked him how to open the glove compartment, and § 87(2)(b) told him that it is opened with a key, which was attached to § 87(2)(b)'s key set in the ignition. Sgt. Gallagher removed § 87(2)(b)'s keys from the ignition and used it to open the glove compartment, where he removed § 87(2)(b)'s registration. After looking at the registration, he threw it onto the vehicle floor and threw the keys onto the driver's seat. § 87(2)(b) did not observe whether or not Sgt. Gallagher entered the vehicle through any other doors at any point. During this time, PO Mussaw told § 87(2)(b) that if the person named on § 87(2)(b)'s PBA card had stopped § 87(2)(b) in this incident, he "would've snatched § 87(2)(b) out of the vehicle."

PO Mussaw gave Sgt. Gallagher § 87(2)(b)'s license and ran a warrant check by his police vehicle. During this time, two marked patrol cars pulled up, but § 87(2)(b) did not attribute any particular actions to the officers in those vehicles. After ten to fifteen minutes, Sgt. Gallagher returned § 87(2)(b)'s license and told him that they had acted in the manner that they did because § 87(2)(b) was staring at Sgt. Gallagher's gun. § 87(2)(b) denied it and asked how that was possible, stating that Sgt. Gallagher stood behind him while § 87(2)(b) was seated in his vehicle. Sgt. Gallagher then said § 87(2)(b) had reached towards his seatbelt "funny" when he was asked for his license and registration. § 87(2)(b) said that there was no reason for the officers to have acted the way they did, at which point Sgt. Gallagher returned his license and documentation and left with PO Chavanne and PO Mussaw.

The undersigned investigator left two voicemails with § 87(2)(b) on February 20 and 22, 2013, to acquire further details regarding this incident. However, as of the date of this report, he has not responded.

NYPD Statements:

Subject Officer: PO TRAVIS MUSSAW

- PO Mussaw is a § 87(2)(b)-old white male who § 87(2)(b), bald, and has brown eyes.
- He was on-duty from 5:30 p.m. on October 24, 2012, to 2:05 a.m. the following day, assigned to conditions in unmarked blue Crown Victoria vehicle § 87(2)(b) in uniform and with Sgt. Gallagher and PO Chavanne.

Memo Book

On October 24, 2012, at 7:20 p.m., PO Mussaw conducted a car stop at Beach 20th Street and Cornaga Avenue; § 87(2)(b)'s headlight and rear brake light were out. § 87(2)(b) was highly combative and refused to comply with multiple orders. He was frisked for furtive movements with his seatbelt/waistline. A Stop, Question, and Frisk Report was prepared for criminal possession of a weapon (CPW), and § 87(2)(b) was warned and admonished (encl. F1-2).

Stop, Question, and Frisk Report

On October 24, 2012, at 7:20 p.m., § 87(2)(b) was stopped and frisked for suspicion of CPW. Furtive movements were a circumstance for the stop. § 87(2)(b) was frisked because he made furtive movements, refused to comply with an officer's direction leading to the officer having a reasonable fear for his safety, and because a violent crime was suspected. He was not searched and a weapon was not found. § 87(2)(b) was not compliant and combative. PO Mussaw noted that the location has a high incidence of weapons possession, physical force was used, and hands were on the suspect (encl. F3).

CCRB Testimony

PO Mussaw was interviewed at the CCRB on April 10, 2013 (encl. F5-7). On the date of the incident, PO Mussaw was with Sgt. Gallagher and PO Chavanne, travelling southbound on Beach 20th Street. PO Mussaw, the driver, observed § 87(2)(b) driving with a broken head light and tail light. He did not recall where Sgt. Gallagher and PO Chavanne were seated, but he told them of his observations and of his intention to stop him for that violation. § 87(2)(b) was pulled over after PO Mussaw activated his car's turret lights and sirens.

PO Mussaw approached § 87(2)(b)'s driver's door; he did not recall where Sgt. Gallagher or PO Chavanne approached. He noted that it was typical for the officer in the front passenger seat to approach the motorists' front passenger side while the officer in the rear passenger seats would stand somewhere behind PO Mussaw. As PO Mussaw approached, he was only able to see the top of § 87(2)(b)'s head, and he did not recall where § 87(2)(b)'s hands were or if he was doing anything inside the vehicle. The driver's window was rolled down two inches, which PO Mussaw thought was unusual because motorists typically roll down their windows completely during car stops. The vehicle was in park.

PO Mussaw asked § 87(2)(b) to roll down the window further, but he neither responded nor complied. PO Mussaw was unable to see if § 87(2)(b) had any bulges or objects on his person. PO Mussaw asked him several more times to roll down the window in a loud "command" voice, at which point he rolled it down further. Neither Sgt. Gallagher nor PO Chavanne spoke during this time. He did not recall if he, PO Chavanne, or Sgt. Gallagher used profanity, including the word "fuck," towards § 87(2)(b). PO Mussaw told § 87(2)(b) that he was stopped because his headlight and rear light were out, and he asked for his license, registration, and insurance. § 87(2)(b) then became "fidgety" and turned and reached towards the right side of his waist or the area between his seat and the center console. He did not recall the center console's appearance. PO Mussaw did not know what § 87(2)(b) was reaching towards, but suspected that he was concealing a weapon or something to hurt him on his person or inside the car. PO Mussaw believed this because § 87(2)(b)'s behavior was unusual due to his partially-opened window and for refusing repeated commands to lower it. There were no additional factors that led PO Mussaw to believe that § 87(2)(b) was armed. For his and his partners' safety, PO Mussaw instructed § 87(2)(b) to exit the vehicle, and § 87(2)(b) complied. PO Mussaw did not recall if § 87(2)(b) had retrieved his identification during this time. Neither Sgt. Gallagher nor PO Chavanne instructed PO Mussaw to remove § 87(2)(b) from the vehicle.

While standing by the passenger door behind the driver's door, PO Mussaw frisked § 87(2)(b) for weapons, patting the exterior of § 87(2)(b)'s waistband, then his legs and front torso. He first touched § 87(2)(b)'s right waistband because that was an area that he suspected to have a weapon because of § 87(2)(b)'s movements in the car. Simultaneously, PO Mussaw asked § 87(2)(b) why he did not comply with his previous orders and if he was nervous. He did not recall if § 87(2)(b) responded. PO Mussaw did not feel any weapons or objects and he did not place his hands into any of § 87(2)(b)'s pockets. He was unaware of Sgt. Gallagher or PO Chavanne's actions or whereabouts during the frisk. Thereafter, PO Mussaw asked § 87(2)(b)

for his license. § 87(2)(b) retrieved his license from an area on his person that PO Mussaw did not recall and gave it to him. PO Mussaw did not recall if he, Sgt. Gallagher, or PO Chavanne ever had § 87(2)(b)'s insurance or registration.

PO Mussaw asked § 87(2)(b) to walk to the rear of the vehicle, and he complied. PO Mussaw then told PO Chavanne to check § 87(2)(b)'s lungeable and grabbable areas in the vehicle for a weapon or "something illegal" that § 87(2)(b) may have concealed because of his movements in the car. PO Mussaw wanted the areas that § 87(2)(b) turned or reached towards – areas by the center console and underneath the driver's seat – to be inspected. Sgt. Gallagher may have instructed PO Chavanne to do the same since he walked to the rear of the vehicle with PO Mussaw, but he was uncertain. PO Mussaw stood by his own police vehicle and called his command's T/S operator to run a license check because their radio was malfunctioning. PO Chavanne leaned into the vehicle, but PO Mussaw did not see which door he entered or where he specifically searched. He did not remove any items from the vehicle. PO Mussaw never entered the vehicle during this incident, and he was unaware if Sgt. Gallagher ever did.

Less than ten minutes after calling his command, the T/S operator was unable to properly conduct a license check due to technical problems, and PO Mussaw informed Sgt. Gallagher of such. Sgt. Gallagher told PO Mussaw to warn and admonish § 87(2)(b) for his vehicle having a broken head light and tail light. PO Mussaw told § 87(2)(b) that he was removed from the vehicle because he had made furtive movements to his waist and that he did not know if § 87(2)(b) had a weapon, adding, "I don't want to get shot, I don't want my partner to get shot, and I don't want to get you shot. So keep your hands where we could see them, don't make movements like that, and this won't happen. Next time just roll the windows down, it's a lot easier to hand us your information when we ask, and just get the head light and tail light fixed. We're not going to give you summonses." PO Mussaw did not recall if Sgt. Gallagher or PO Chavanne spoke to § 87(2)(b) at this time. § 87(2)(b) said, "Alright," and they left. The entire incident lasted approximately ten minutes.

During the interview, PO Mussaw was shown a copy of the handwritten Stop, Question, and Frisk Report for § 87(2)(b). PO Mussaw said that the area has a high incidence of gun violence and violent crimes in general, of which he has made multiple arrests within the last year.

Subject Officer: SGT. KEITH GALLAGHER

- Sgt. Gallagher is a § 87(2)(b)-old white male who § 87(2)(b), and has brown hair and blue eyes.
- He was on-duty from, 5:20 p.m. on October 24, 2012 until 2:17 a.m. the following day, assigned as the conditions sergeant, in uniform and in unmarked blue sedan number § 87(2)(b) with PO Mussaw and PO Chavanne.

Memo Book

Sgt. Gallagher had no memo book entries regarding this incident (encl. G1-3).

CCRB Testimony

Sgt. Gallagher provided an in-person statement at the CCRB on March 15, 2013 (encl. G4-6). § 87(2)(g)

Sgt. Gallagher observed § 87(2)(b) driving southbound on Beach 20th Street with a non-working headlight. He did not recall if the windows were tinted or if there was anything else unusual about the vehicle's appearance. Sgt. Gallagher verbally communicated with PO Mussaw and PO Chavanne to stop § 87(2)(b) for that VTL violation. The area where § 87(2)(b) was stopped was well-lit by street lamps.

Sgt. Gallagher approached § 87(2)(b)'s front passenger door. § 87(2)(b) became agitated and irate, refusing to provide the requested documents and accusing the officers of stopping him because he was black. PO Mussaw repeated his request for § 87(2)(b)'s license and registration. During this exchange, Sgt. Gallagher saw from the vehicle's gear shifter by the center console that the vehicle was not in park. Additionally, § 87(2)(b) repeatedly turned his upper torso to his right and left, reaching towards what appeared to be the seat buckle, center console, the sides of his waist, and the sleeve of the driver's door. Sgt. Gallagher was unable to see § 87(2)(b)'s hands, what he may have been reaching for, or if he was holding anything. He did not recall if there were any bags, packages, or objects inside the vehicle, and he did not recall the center console's design. Sgt. Gallagher used his flashlight to see, but he did not recall if PO Mussaw or PO Chavanne used theirs. His attention was primarily focused on the officer at the driver's door due to § 87(2)(b)'s refusing to comply with instructions. In regards to § 87(2)(b)'s hand movements, Sgt. Gallagher said, "It was just too much movement to where I thought he might be hiding something."

§ 87(2)(b)'s refusal to comply with an officer's requests, his reaching towards areas that Sgt. Gallagher could not see, and his vehicle not being parked raised Sgt. Gallagher's suspicion that § 87(2)(b) was reaching for a weapon on his person or inside the vehicle, or that he was going to flee. Sgt. Gallagher feared for his and his subordinates' safety, so he instructed PO Mussaw to remove § 87(2)(b) from the car and frisk him. Sgt. Gallagher did not recall if he attempted to open the front passenger door or if he spoke to § 87(2)(b) including telling him to roll his window down. Sgt. Gallagher, PO Mussaw, and PO Chavanne did not use any profanity, including the word "fuck," towards § 87(2)(b). Sgt. Gallagher told § 87(2)(b) to place the car in park while PO Mussaw instructed him to exit the vehicle. § 87(2)(b) complied with their instructions, but appeared agitated because he said, "This is bullshit" and that he was stopped because he was black as he exited the vehicle. Sgt. Gallagher did not see if § 87(2)(b) had any bulges or objects on his person. Sgt. Gallagher walked towards the rear of the vehicle while PO Mussaw frisked him. Sgt. Gallagher did not recall where § 87(2)(b) was specifically touched and PO Mussaw did not place his hands into § 87(2)(b)'s pockets. Due to § 87(2)(b)'s demeanor, plus the apparent tensing of his muscles during the frisk, Sgt. Gallagher felt that the situation could potentially elevate to a violent confrontation. He noted that § 87(2)(b) did not resist while being frisked. § 87(2)(b) was never handcuffed.

Sgt. Gallagher instructed § 87(2)(b) to sit on the rear bumper of the vehicle and instructed PO Mussaw and PO Chavanne to search "grabbable containers" inside the car where § 87(2)(b) was seated for any weapons that he may have hidden. This instruction was given for the same reasons why § 87(2)(b) was removed and frisked. Sgt. Gallagher described "grabbable containers" as covered areas where a weapon could be hidden, including the center console, underneath the driver's seat, and the sleeve/compartments alongside the driver's door. While § 87(2)(b) sat by the rear of the car, PO Mussaw or PO Chavanne entered the vehicle from a door that Sgt. Gallagher did not recall. Sgt. Gallagher, who stood by § 87(2)(b) and with one of his partners because § 87(2)(b) had appeared angry or agitated since he was removed from the vehicle, did not recall or see what areas of the vehicle were searched, save for the center console area. During the search, Sgt. Gallagher attempted to verbally calm down § 87(2)(b) by telling him, "Look, it's just a traffic infraction," and he asked him if there was anything in the areas that he had been turning or reaching towards. Sgt. Gallagher did not recall if or how § 87(2)(b) responded. Sgt. Gallagher did not recall ever entering or searching § 87(2)(b)'s vehicle during this incident.

At some point while standing towards the rear of the vehicle, § 87(2)(b)'s license and a PBA card was acquired by PO Mussaw or PO Chavanne, but Sgt. Gallagher did not recall how it was retrieved. Because § 87(2)(b) was so agitated, Sgt. Gallagher used discretion and decided

not to issue § 87(2)(b) a summons and instead explained to him that he was removed from the vehicle for his and the officers' safety. Sgt. Gallagher told § 87(2)(b) that if the police stop him and explain the reason for the stop, do not make furtive movements, ignore requests to roll down the window, or ignore orders. He also warned and admonished § 87(2)(b) about the malfunctioning headlight. § 87(2)(b) continued to appear agitated, making statements that Sgt. Gallagher did not recall, other than, "This is bullshit." PO Mussaw and PO Chavanne did not speak to § 87(2)(b) during this verbal exchange. The officers left thereafter.

Subject Officer: PO BRIAN CHAVANNE

- PO Chavanne is a § 87(2)(b)-old white male who § 87(2)(b), bald, and has blue eyes.
- He was on-duty from 5:30 p.m. on October 24, 2012, to 2:05 a.m. the following day, assigned to conditions, in uniform, in unmarked sedan § 87(2)(b) with Sgt. Gallagher and PO Mussaw.

Memo Book

PO Chavanne had no memo book entries regarding this incident (encl. H1-2).

CCRB Testimony

PO Chavanne was interviewed at the CCRB on April 16, 2013 (encl. H3-4). § 87(2)(g)

On the date of the incident, PO Chavanne was seated in the rear passenger seat. They were traveling south on Beach 20th Street when they stopped at a red traffic light on Cornaga Avenue. § 87(2)(b)'s vehicle was in front of theirs at the intersection and had a broken brake light, but he did not recall if any of the officers communicated to each other about that observation. PO Chavanne did not recall which officer made the decision to stop the vehicle, but he asserted that one of the officers mentioned an intention to do so. The vehicle's windows were tinted to a degree where one could see if a person was inside but not very clearly.

PO Chavanne approached the front passenger door. Sgt. Gallagher stood behind PO Mussaw. As PO Chavanne walked towards the vehicle, § 87(2)(b) swayed his body from side to side and fidgeted his hands around the center console and near his feet below the steering wheel. PO Chavanne perceived those actions as attempts to place something in the center console or underneath the driver's seat. He did not recall the appearance of the center console and he did not observe any items inside the vehicle. § 87(2)(b) continued to move his body and hands in the same manner described previously when PO Mussaw asked him to roll down his driver window. The window was never rolled down. After PO Mussaw's repeated commands to exit the vehicle, § 87(2)(b) exited. From PO Chavanne's position by the front passenger door, he was unable to see if there were bulges or objects on § 87(2)(b)'s person, what areas PO Mussaw frisked § 87(2)(b) or if PO Mussaw placed his hands inside any of § 87(2)(b)'s pockets. PO Mussaw patted the exterior of § 87(2)(b)'s body, but PO Chavanne, who stood by the front passenger door, was unable to see what areas § 87(2)(b) was touched or if PO Mussaw placed his hands inside any pockets.

Without instruction from an officer, PO Chavanne entered the front passenger door and searched areas in the vehicle within § 87(2)(b)'s immediate reach, which included the center console and underneath the front passenger seat and driver's seat. PO Chavanne did not recall if he opened any lids in the center console as he did not recall its appearance. He did not open the glove compartment. He did not see any item during the search, which lasted approximately one minute. Sgt. Gallagher and PO Mussaw never searched the vehicle. He did not recall if Sgt.

Gallagher or PO Mussaw spoke during this time. PO Chavanne searched the vehicle because of “the way his mannerisms were inside the vehicle, the way he was fidgeting around, the fact that I couldn’t see inside the vehicle when he was fidgeting inside the vehicle, the fact that he wouldn’t step out of the vehicle when we first asked him to roll down his window, which raised our suspicion.” PO Chavanne suspected that § 87(2)(b) was possibly attempting to hide a weapon. Other than the factors mentioned above, there were no other factors that led PO Chavanne to suspect that § 87(2)(b) was armed. Other than the broken tail light, there was no indication that § 87(2)(b) had committed a crime.

PO Mussaw asked § 87(2)(b) for his identification and he provided it, but PO Chavanne did not recall from where it was retrieved. PO Mussaw began to write on a piece of paper, which PO Chavanne interpreted as his writing § 87(2)(b)s pedigree information.

NYPD Documents

SPRINT

There were no SPRINT reports generated in regards to this incident (encl. I1).

MISD

There was no MISD warrant check conducted for § 87(2)(b) during this incident (encl. I2).

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of March 13, 2014, with regard to the incident (encl. L9).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. C1).

Subject Officers CCRB History

- PO Chavanne has been a member of the service for nine years and there are no substantiated CCRB allegations against him (encl. B1).
- PO Mussaw has been a member of the service for six years and there are no substantiated CCRB allegations against him (encl. B2).
- Sgt. Gallagher has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl. B3).

Conclusion

Identification of Subject Officers

Sgt. Gallagher, PO Chavanne, and PO Mussaw acknowledged interacting with § 87(2)(b) during this incident § 87(2)(g)

Investigative Findings and Recommendations

Allegation Not Pled

§ 87(2)(g)

- **Allegation A – Discourtesy: Sgt. Keith Gallagher spoke discourteously to** § 87(2)(b)

§ 87(2)(b) said that Sgt. Gallagher repeatedly told him, “Roll the fucking window down.” However, Sgt. Gallagher denied it and neither PO Mussaw nor PO Chavanne recalled hearing him utter said remark. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation A** be **Unsubstantiated**.

- **Allegation B – Abuse of Authority: PO Travis Mussaw frisked** § 87(2)(b)

It is undisputed that PO Mussaw frisked § 87(2)(b) during this incident. After § 87(2)(b)'s vehicle was stopped, he only partially rolled down his window and reached for his right pocket when his license, registration, and insurance were requested. PO Mussaw said that § 87(2)(b) refused multiple commands to lower his window and reached towards the right side of his waist or the area between his seat and the center console after his license, registration, and insurance were requested – actions that led PO Mussaw to suspect that § 87(2)(b) was concealing a weapon. PO Mussaw frisked § 87(2)(b) for weapons, first patting the exterior of § 87(2)(b)'s waistband, then his legs and front torso.

Sgt. Gallagher said that § 87(2)(b)'s vehicle was not in park and he initially refused multiple commands to lower his window. Sgt. Gallagher then said that § 87(2)(b) repeatedly turned his upper torso to his right and left, reaching towards areas that appeared to be the seat buckle, center console, both sides of his waist, and the sleeve of the driver's door. PO Chavanne said that as the officers walked towards the vehicle, § 87(2)(b) swayed his body from side to side and fidgeted his hands around the center console and near his feet below the steering wheel. PO Chavanne also said that § 87(2)(b) never rolled down his window.

Physical movements by a vehicle occupant that suggest he is concealing a weapon give rise to reasonable suspicion, justifying a pat down. *People v. Davila*, 901 N.Y.S.2d 787 (2010) (encl. A1-4).

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) it is recommended that **Allegation B** be **Exonerated**.

- **Allegation C – Abuse of Authority: PO Travis Mussaw searched** § 87(2)(b)

§ 87(2)(b) said that after he was frisked, PO Mussaw placed his right hand inside § 87(2)(b)'s right jacket pocket. PO Mussaw denied it and neither Sgt. Gallagher nor PO Chavanne saw § 87(2)(b) searched. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation C** be **Unsubstantiated**.

- **Allegation D – Abuse of Authority: Sgt. Keith Gallagher searched the car in which** § 87(2)(b) **was an occupant.**

It is undisputed that § 87(2)(b)'s vehicle was searched. According to § 87(2)(b) Sgt. Gallagher entered the vehicle from the front passenger door, looking at areas around the driver's

seat and the front passenger seat. Then, Sgt. Gallagher removed § 87(2)(b)'s keys from the ignition and used it to open the glove compartment, where he removed § 87(2)(b)'s registration.

Sgt. Gallagher did not recall entering or searching § 87(2)(b)'s vehicle himself, testifying that he instructed PO Mussaw and PO Chavanne to search the vehicle, based on § 87(2)(b)'s actions predicated by a request for his documentation. Meanwhile, PO Mussaw said that he told PO Chavanne to search the vehicle and he was unaware if Sgt. Gallagher conducted a search. PO Chavanne said that he searched the vehicle without instruction, and he denied that Sgt. Gallagher searched it. § 87(2)(g)

After the occupants of a vehicle are removed and patted down to eliminate any immediate threat to an officer's safety, a vehicle search is not permitted unless there is probable cause or the likelihood of a weapon in the vehicle is substantial and the danger is 'actual and specific.' Reasonable suspicion alone is insufficient. People v. Carvey, 89 N.Y.2d 707, 710-711 (1997) (encl. A5-8).

§ 87(2)(g)
§ 87(2)(b) § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b) it is recommended that **Allegation D** be **Substantiated**.

- § 87(2)(g), § 87(4-b)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date